

25SMCV06832 25SMCV06832

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C07%2F14%2F2026

Source SHA-256: 1223f34abd507c3d87739dee246ef959b6ff6b0ee3e34655de9a41068257752b

Case Number: 25SMCV06832 Hearing Date: July 14, 2026 Dept: M

CASE NAME: Prikhodko, v. Shem, et al.

CASE NO.: 25SMCV06832

MOTION: Demurrer and Motion to Strike the Complaint

HEARING DATE: 7/14/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendants Charles Shem and Frederick P. Bimbler demur to the second, third, fourth, and sixth causes of action of Plaintiff Igor Prikhodkha's Complaint, and move to strike allegations related to the Complaint's request for punitive damages.

Second

COA - Negligence Per Se

The doctrine of negligence per se “is not a separate cause of action, but creates an

evidentiary presumption that affects the standard of care in a cause of action for negligence.” (Johnson v. Honeywell Int’l Inc., (2009) 179 Cal. App. 4th 549, 555-56, emphasis added, internal quotations omitted.) As no such independent cause of action exists, the demurrer is SUSTAINED with leave to amend. Plaintiff may allege liability under the doctrine of negligence per se as part of the first cause of action for general negligence.

Third

COA - Intentional Infliction of Emotional Distress

A cause of action for

intentional infliction of emotional distress (IIED) exists when there is: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.) A defendant's conduct is “outrageous” when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.)

The defendant must either intend his or her conduct to inflict injury or engaged in it with the realization that injury will result. (Ibid.)

Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.) The question of whether conduct is

outrageous is a question of fact to be determined beyond the pleading stage. (So v. Shin (2013) 212 Cal.App.4th 652.) The outrageousness inquiry includes consideration of factors such as whether a defendant “(1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (Agarwal v. Johnson (1979) 25 Cal.3d 932, 946, disapproved on other grounds by White v. Ultramar, Inc. (1999) 21 Cal.4th 563.) Nonetheless, “[w]hile those cases say that it is ‘usually’ a question of fact, several cases have dismissed intentional infliction of emotional distress claims on demurrer, concluding that the facts alleged did not amount to outrageous conduct as a matter of law.” (Barker v. Fox & Associates (2015) 240 Cal.App.4th 333, 355-356.) Additionally, whether a defendant acted with requisite intent is a question of fact for the jury. (Safechuck v. MJJ Productions, Inc. (2023) 94 Cal.App.5th 675, 698.)

The Complaint alleges that Shem rear-ended Plaintiff and then fled the scene of the accident. Shem's rear-end collision with Plaintiff, by itself, does not show any intentional or outrageous conduct. According to the Complaint, Shem was operating a heavy truck in a negligent manner (failing to maintain a proper lookout, failing to reduce speed appropriately, failing to maintain a safe following distance) and rear-ended Plaintiff's stationary vehicle causing Plaintiff's physical injuries. (Compl., ¶ 8.) Plaintiff experienced severe physical injuries, including blindness in his right eye, neurological misalignment and chronic pain, as well as property damage to his vehicle. (Id., ¶¶ 13, 16.) While the injuries are severe, the Complaint only alleges negligent conduct caused the physical injuries, which does not support an allegation of intentional or reckless disregard, or "outrageous" conduct. Thus, the facts concerning the flight must establish outrageous conduct and the requisite intent.

Shem argues that the alleged flight from the scene of the collision could only support a tort claim if the flight caused additional damages above and beyond the accident itself. In *Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669, the Supreme Court explained that one who negligently injures another and renders him helpless is bound to use reasonable care to prevent any further harm which the actor realizes or should realize threatens the injured person, even if the accident was caused in part by the contributory negligence of the person who was injured. (Id. at 679.) Additionally, the Vehicle Code requires an automobile driver who injures another to stop and render aid, and a violation gives rise to civil liability if it is a proximate cause of further injury or death. (Id.) From such duties, the Court found that the jury was properly instructed that the driver, knowing the victim had been struck, was under a duty to stop immediately and render such aid to save his life or prevent aggravation of his injuries, that judgment should be for plaintiffs if the driver's breach of the duty was a proximate cause of the victim's death, and that the duty to stop and render aid did not depend upon the negligence of the driver in causing the accident or the contributory negligence of the victim in causing the initial accident. (Id. at 678-679.) While the circumstances are not exactly analogous, as there is no IIED theory in *Brooks*, the discussion in *Brooks* supports the conclusion that a hit-and-run may constitute a tort if the abandonment itself causes plaintiff "further" injury beyond those caused by the preceding collision.

The Complaint alleges that Shem fled the scene after the

collision, allegedly causing additional emotional distress damages. After Plaintiff exited his vehicle, he informed Shem that he was bleeding. (Compl., ¶ 9.) Shem instructed Plaintiff to pull forward and park the car. (Id.) Plaintiff complied in an attempt to exchange information. (Id.) But Shem then turned in the opposite direction and fled the scene at high speed to evade responsibility. (Id.) His vehicle lacked a front license plate. (Id.) Plaintiff waited a minute before pursuing Shem. (Id., ¶ 10.) While on the telephone with 911 emergency services and honking his horn repeatedly to signal Shem to stop, Plaintiff pursued Shem's vehicle for approximately nine minutes. (Id.) Shem had multiple opportunities to stop his vehicle and provide the required information but deliberately disregarded Plaintiff's urgent requests to stop, instead accelerating even faster and employing illegal and dangerous tactics, including driving on the opposite side of the road. (Id.) Plaintiff eventually caught up with Shem. (Id., ¶ 11.) Shem initiated an argument with Plaintiff, adopting a domineering and commanding tone with Plaintiff during the confrontation. (Id.) The Complaint alleges that Shem's flight from the scene after causing injuries to Plaintiff was outrageous, since the flight was dangerous, illegal, and in callous disregard of others' safety (including Plaintiff's safety). (Compl., ¶ 18.) Further, the flight itself allegedly caused severe and enduring emotional distress. (Compl., ¶ 31.)

There

are no published California appellate court decision which has held that a defendant's flight from a collision scene could not constitute the elements of outrageous conduct or a reckless disregard of the probability of causing emotional distress. The only cited decision, Brooks, supports tort liability where abandonment itself aggravates physical injuries or causes "further" injury. Absent further clarification from published authority, this issue likely remains an issue of fact which should not be resolved at the pleading stage. A fact finder could find that the flight was outrageous as alleged.

(Compl., ¶ 30.) A fact finder could also find that Shem acted with reckless disregard of the probability of causing emotional distress as alleged. (Compl., ¶¶ 30-31.) Thus, the IIED claim is sufficient for pleading purposes.

Accordingly,

the demurrer is OVERRULED.

Fourth

COA - Negligent Infliction of Emotional Distress

NIED is not an independent cause of action, but the tort of negligence. (Zavala v. Arche (1997) 58 Cal.App.4th 915, 928; Marlene F. v. Psychiatric Medical Clinic (1989) 48 Cal.3d 583, 588 ["Damages for severe emotional distress, rather, are recoverable in a negligence action when they result from the breach of a duty owed the plaintiff that is assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two"].) Plaintiff must allege this negligence cause as a part of the underlying general negligence cause of action. Accordingly, Defendant's demurrer is SUSTAINED with leave to amend to allow Plaintiff to integrate the emotional distress allegations within the underlying negligence cause of action.

Sixth COA – Fraud

The elements of a claim for fraud are (1) misrepresentation of a material fact; (2) knowledge of falsity or lack of a reasonable ground for belief in the truth of the representation; (3) intent to induce reliance; (4) actual and justifiable reliance by the plaintiff; and (5) resulting damage. (Orient Handel v. United States Fid. & Guar. Co. (1987) 192 Cal.App.3d 684, 693.) Fraud must be plead with specificity. (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 185, fn. 14.) This includes a requirement that a plaintiff plead "facts which show how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

A plaintiff's reliance on the defendant's material misrepresentation must be a substantial factor in causing harm to the plaintiff. (Manderville v. PCG & S Group, Inc. (2007) 146 Cal.App.4th 1486, 149.) A plaintiff must allege the specific damages they suffered as a result of their reliance on a promise and how their acts in reliance on the promise caused damages. (Rossberg v. Bank of America, N.A. (2013) 219 Cal.App.4th 1481, 1499.) "The fraud plaintiff must ... allege his damages were caused by the actions he took in reliance on the defendant's misrepresentations." (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1064.) "If the defrauded plaintiff would have suffered the alleged damage even in the absence of the fraudulent inducement, causation cannot be alleged and a fraud cause of action cannot be sustained." (Ibid.)

Generally, there are

two measures of damages for fraud: out-of-pocket and benefit of the bargain. (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240.) "The 'out-of-pocket' measure of damages 'is directed to restoring the plaintiff to the financial position enjoyed by him prior to the fraudulent transaction, and thus awards the difference in actual value at the time of the transaction between what the plaintiff gave and what he received. The "benefit-of-the-bargain" measure, on the other hand, is concerned with satisfying the expectancy interest of the defrauded plaintiff by putting him in the position he would have enjoyed if the false representation relied upon had been true; it awards the difference in value between what the plaintiff actually received and what he was fraudulently led to believe he would receive.' " (*Id.*) A defrauded party is ordinarily limited to recovering his "out-of-pocket" loss rather than "benefit of the bargain" damages. (*Ibid.*)

The

fraud claim relies on the allegation that Shem made a misrepresentation by instructing Plaintiff to "pull forward and park the car" thereby representing a present intent to stop at a nearby location and exchange required information. (*Compl.*, ¶ 45.) Plaintiff relied on this representation by pulling his vehicle forward as instructed. (*Id.*, ¶ 49.) Plaintiff contends that had Plaintiff not relied on the false representation, and instead remained at the initial collision site without moving his vehicle, Plaintiff would have been positioned to immediately document Shem's vehicle, any visible identifying information, and potentially prevent or shorten the evasion. (*Id.*, ¶ 50.) Plaintiff's reliance therefore caused harm, including (a) an inability to obtain identifying information at the initial scene, (b) the necessity of engaging in a hazardous nine-minute pursuit while injured, on the phone with 911, and operating his vehicle under extreme distress, which directly exacerbated physical injuries (such as increased pain, vision impairment, and strain) and prolonged exposure to danger; (c) additional severe emotional distress from the realization of deliberate deception, the frustration of the extended chase, and the resulting sense of helplessness and violation; and (d) increased difficulty and delay in identifying Defendant Shem, resolving the claim, and obtaining timely compensation and medical care. (*Id.*)

The

above facts are insufficient to establish damages resulting from the alleged reliance. Shem's instruction to pull to the side of the road could not have materially altered Plaintiff's position or caused the claimed

damages. At best, such an instruction might cause a plaintiff to be unable to identify a defendant driver, but here, plaintiff identified the driver. As noted, Plaintiff contends that the instruction caused an inability to safely document the scene and the vehicles at the moment of impact. However, Plaintiff does not specifically allege what damage this inability to safely/immediately document the scene or the conditions of the vehicle caused. Moreover, Plaintiff does not allege that his reliance (pulling over) exacerbated his physical injuries. Plaintiff identifies that he was forced into a "hazardous nine-minute pursuit" that exacerbated physical injuries and emotional trauma and delayed resolution. However, such harms are only logically caused by Defendant's flight or Plaintiff's decision to pursue, and not Plaintiff's reliance on Defendant's instruction.

Accordingly, the demurrer is SUSTAINED. Leave to amend will only be granted if plaintiff demonstrates a reasonable probability of successful amendment at the hearing.

Motion to Strike – Punitive Damages

Civil Code section 3294 defines malice as conduct "intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Despicable is a powerful term used to describe circumstances that are "base," "vile," or "contemptible." (Coll. Hosp. v. Superior Ct. (1994) 9 Cal.4th 704, 726.) The statute "plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found." (Id.)

As discussed, Plaintiff alleges facts demonstrating that Shem was aware of the probable consequences of intentionally fleeing the collision would result in severe emotional distress, which constitutes additional damages above and beyond the initial collision itself. The Complaint also alleges, as matters of fact, that Defendant's conduct was despicable, malicious and oppressive. (Compl., ¶ 33.) Caselaw holds that punitive damages are proper in connection with a properly pleaded claim for intentional infliction of emotional distress, where malice and/or oppression is also pled. (See, e.g., *Heller v. Pillsbury Madison & Sutro* (1996) 50 Cal.App.4th 1367; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 121.) Again, Defendant directs the

court to no caselaw that supports his position that a hit-and-run could never cause emotional distress or support an IIED claim.

Otherwise, the Court concurs that Plaintiff improperly pleads a specific amount of punitive damages sought, i.e., between \$1,500,000 and \$3,000,000. (Civil Code § 3295(e).)

Accordingly, the motion to strike is GRANTED in part without leave to amend. The specific amounts of requested punitive damages are stricken. The remainder of the motion is DENIED.